

Motion to Supplement with Post-Order Proffer

Relief requested

A.R.M. moves for an order adding T.R.’s eight-page declaration to the materials available on review or, alternatively, returning the matter to the agency for any procedure the court considers lawful. T.R. signed the declaration on February 20, 2025, after the Board entered its January 13 order. Counsel filed it separately on February 24, 2025 and does not contend that the immigration judge or Board saw it.

The requested relief is therefore supplementation, not correction of an omitted agency exhibit. A.R.M. argues that the declaration describes recent activity relevant to the asserted return-identification pathway, while acknowledging that the timing of its creation presents a threshold record problem. The motion asks the court to rule on that problem openly rather than assign administrative-record labels through clerk action or assume that relevance alone permits consideration.

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Proffer chronology

T.R. states that a search of the family residence occurred in February 2025 and signs the account on February 20. Neither event existed when the immigration judge closed the evidence or when the Board dismissed the appeal on January 13. The declaration was not lodged at the September hearing, listed in the agency exhibit receipts, cited in either agency decision, or included in the Board appeal filings.

Counsel tendered the declaration with a proffer notice on February 24, after the petition for review had been received. Its appellate pages are kept separate from the agency materials. This chronology is offered so the court can decide the proper procedural treatment without confusing the date of the alleged event, the date of the declaration, and the date of the proffer. A.R.M. does not ask the court to deem the new account true merely because it was filed.

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Record-limit question

Section 1252(b)(4)(A) directs the reviewing court to decide the petition only on the administrative record on which the removal order was based. A.R.M. acknowledges that this text prevents treating a post-order declaration as though it had been admitted before the agency. Rule 16(b) can correct an omission or misstatement in the existing review record, but it does not by its own terms make later-created evidence part of that historical record.

A.R.M. nevertheless asks whether a remand or other agency-facing procedure is available for the asserted new development. The motion does not rely on the declaration to prove the CAT merits in the pending petition and does not ask the court to make a new risk finding. If the court concludes that no relief is available in this proceeding, counsel requests an order stating that the proffer remains outside the administrative record without prejudice to any separate procedure authorized by law.

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Claimed relevance and limits

The declaration describes alleged questions about A.R.M.'s whereabouts and activity at a family residence after the Board order. Counsel contends that, if later tested and credited in a proper forum, those assertions could bear on the record's existing discussion of registry searches, return identification, and communication among the feared actors. The asserted connection is an advocacy position, not an admission by the respondent or a finding by this court.

The declaration's possible relevance does not answer authenticity, reliability, personal-knowledge, hearsay, changed-circumstances, or procedural-vehicle questions. T.R. was not examined before the immigration judge, and the institutional respondent has had no agency opportunity to contest the account. A.R.M. therefore separates the proffer from every citation used to describe what the agency record already establishes. The motion seeks a procedural ruling, not judicial acceptance of the declaration's facts.

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Respondent position

Counsel conferred with the institutional respondent before filing. The respondent opposes adding the declaration to the administrative record and does not consent to remand on the present motion. It maintains that judicial review must remain confined to material before the agency and that any later event must be addressed, if at all, through a procedure outside the pending record. The respondent reserves a complete written response.

A.R.M. accurately reports that opposition and does not characterize this motion as agreed or unopposed. The parties' disagreement concerns both the court's authority and the procedural consequences of the declaration's date. It does not alter their separate ability to agree that a genuinely admitted exhibit was omitted from a transmission. The court can therefore decide supplementation and correction by separate orders on distinct facts, even if the two questions are pending during the same record-management period.

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Attachment boundary and service

The T.R. declaration remains the separate eight-page proffer filed on February 24. This six-page motion does not reproduce those pages or incorporate them into a corrected agency index. References to the declaration identify the object whose treatment is disputed; they do not confer evidentiary status. Any order denying supplementation should leave the proffer visible on the appellate docket while making clear that it supplies no administrative-record proposition.

Counsel certifies service of the motion on the institutional respondent. The filing contains the requested relief, grounds, record-limit analysis, relevance argument, respondent's stated opposition, and this boundary certification. A.R.M. asks that the court rule before merits briefing so both parties know which citation universe governs their briefs. Until that ruling, counsel will cite the proffer only when discussing the supplementation request and will not present it as evidence supporting the existing CAT claim.